

Anthropic — Data Processing Position

COMPLIANCE FILE NOTE by VYVE Health CIC, 12 July 2026. Anthropic's DPA is not a separately executed document: per Anthropic's own guidance ("When you accept Anthropic's Commercial Terms of Service, you also accept our DPA"), the DPA with Standard Contractual Clauses is automatically incorporated into the Commercial Terms of Service, which VYVE accepted on creation of its commercial API account. Canonical governing texts (live versions govern): <https://www.anthropic.com/legal/commercial-terms> and <https://www.anthropic.com/legal/data-processing-addendum>. Guidance source: <https://privacy.claude.com/en/articles/7996862>.

Contract structure

VYVE Health CIC is Controller; Anthropic PBC (a Public Benefit Corporation) is Processor under Article 28 GDPR. The DPA remains in force for the full term of the services agreement. Governing structure includes the 2021 EU Standard Contractual Clauses (Module 2, Controller to Processor) for EU personal data, the UK International Data Transfer Addendum (ICO Approved Addendum, laid before Parliament 2 Feb 2022) for UK personal data, and a Swiss addendum.

The commitments that matter for VYVE / Sage diligence

1) NO TRAINING: under the Commercial Terms, customer inputs and outputs via the API are not used to train Anthropic models. 2) RETENTION: API operational logs auto-delete after 7 days by default; a Zero Data Retention configuration exists as an enterprise upgrade if required. 3) DELETION/RETURN: customer data deleted or returned within 30 days of termination. 4) SUB-PROCESSORS: general authorisation with advance notice (15 days) and right to object. 5) SECURITY: AES-256 at rest, TLS 1.2+ in transit, access controls per the DPA security schedule. 6) NO SALE/SHARE: Anthropic may not sell or share customer personal data.

How VYVE uses the processing

Server-side only (Edge Functions; the Anthropic key never reaches clients). Prompts include pseudonymised member profile data as disclosed in the VYVE privacy policy §6. Transfers to the US are covered by the DPA-incorporated SCCs (Module 2); Anthropic participates in the EU-US Data Privacy Framework.

Filing note

This position note is filed alongside the executed/accepted DPAs for Supabase, Brevo, PostHog and Capawesome in the VYVE compliance file. The live pages at the canonical URLs above are the binding texts; this note records the incorporation mechanism, acceptance route, retrieval date, and the key terms relied upon. Optional upgrade: browser print-to-PDF captures of both canonical pages can be substituted for full verbatim evidence.